

25TRCV01256 25TRCV01256

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Case Number: 25TRCV01256 Hearing Date: September 16, 2026 Dept: M

LOS ANGELES SUPERIOR COURT –
SOUTHWEST DISTRICT

Honorable Amy N. Carter

Wednesday, September 16, 2026

Department M Calendar No.

PROCEEDINGS

Merna Gundy, et al. v. Jaguar Land Rover North America
LLC, et al.

25TRCV01256

1. Merna

Gundy, et al.'s Motion to Compel Deposition Attendance and Production of
Documents by Defendant's Personal Most Knowledgeable

TENTATIVE RULING

Merna Gundy, et al.'s Motion to Compel Deposition
Attendance and Production of Documents by Defendant's Personal Most
Knowledgeable is denied.

Background

Plaintiffs filed the Complaint on April 18, 2025. This

is an action under the Song-Beverly Act. Plaintiffs contend that their 2021 Land Rover Range Rover suffers from “serious defects and nonconformities to warranty including, but not limited to an inoperative infotainment system, an inoperative sunshade, tailgate not opening, stalling, and other serious nonconformities.” (Complaint, ¶ 14).

Motion to Compel Deposition

The party noticing the deposition may move for an order compelling appearance at the deposition and production of documents, pursuant to the deposition notice, from the party deponent who fails to appear or produce materials requested in the deposition notice, and who has not served a valid objection under § 2025.410(a). CCP § 2025.450(a).

“The motion shall be accompanied by a meet and confer declaration under Section 2016.040, or, when the deponent fails to attend the deposition and produce the documents, electronically stored information, or things described in the deposition notice, by a declaration stating that the petitioner has contacted the deponent to inquire about the nonappearance.” CCP § 2025.450(b)(2). Plaintiff set forth a meet and confer declaration stating that Plaintiff contacted the deponent to inquire about the nonappearance. (Decl., Anthony P. Greco, ¶¶ 3-11).

Cal.

Rules of Court, Rule 3.1345 states:

“(a)

Separate statement required

Except

as provided in (b), any motion involving the content of a discovery request or the responses to such a request must be accompanied by a separate statement.

The motions that require a separate statement include a motion:

(1)

To compel further responses to requests for admission;

(2)

To compel further responses to interrogatories;

(3)

To compel further responses to a demand for inspection of documents or tangible things;

(4)

To compel answers at a deposition;

(5)

To compel or to quash the production of documents or tangible things at a deposition;

(6)

For medical examination over objection; and

(7)

For issue or evidentiary sanctions.

(b)

Separate statement not required

A

separate statement is not required under the following circumstances:

(1)

When no response has been provided to the request for discovery; or

(2)

When a court has allowed the moving party to submit--in place of a separate statement--a concise outline of the discovery request and each response in dispute.\

(c)

Contents of separate statement

A

separate statement is a separate document filed and served with the discovery motion that provides all the information necessary to understand each discovery request and all the responses to it that are at issue. The separate statement must be full and complete so that no person is required to review any other

document in order to determine the full request and the full response. Material must not be incorporated into the separate statement by reference. The separate statement must include--for each discovery request (e.g., each interrogatory, request for admission, deposition question, or inspection demand) to which a further response, answer, or production is requested--the following:

(1)

The text of the request, interrogatory, question, or inspection demand;

(2)

The text of each response, answer, or objection, and any further responses or answers;

(3)

A statement of the factual and legal reasons for compelling further responses, answers, or production as to each matter in dispute;

(4)

If necessary, the text of all definitions, instructions, and other matters required to understand each discovery request and the responses to it;

(5)

If the response to a particular discovery request is dependent on the response given to another discovery request, or if the reasons a further response to a particular discovery request is deemed necessary are based on the response to some other discovery request, the other request and the response to it must be set forth; and

(6)

If the pleadings, other documents in the file, or other items of discovery are relevant to the motion, the party relying on them must summarize each relevant document.”

Plaintiff

moves for an order compelling Defendant’s personal most knowledgeable to appear and testify and produce documents at his or her deposition. The motion is made on the grounds that the deponent failed to appear for the noticed date of the deposition and the deponent has not been made available for deposition despite attempts to schedule the deposition with Defendant’s counsel.

Plaintiff's

motion is denied because Plaintiff failed to file and serve the required separate statement. Plaintiff acknowledges that a response was served to the deposition notice in the form of objections. (Decl., Greco, ¶ 2). Plaintiff also confirms that the motion is not merely regarding the testimony of the Defendant's person most knowledgeable, but, also to compel the production of documents at the deposition. In fact, the major point of contention between the parties appears to be the document production portion of the notice. (Id. at ¶¶ 8-11; Reply, p. 4, lines 4-6). In addition, Defendant's counsel states that he proposed a date for the deposition and attempted to meet and confer regarding the scope of the demand request portion of the deposition notice. (Decl., Robert Cho, ¶ 4). Thus, a separate statement is required to be filed. The Court cannot meaningfully analyze the main dispute at issue here, which is the document production portion of the deposition notice, without Plaintiff filing a separate statement as mandated by Cal. Rules of Court, Rule 3.1345.

Thus,

Plaintiff's Motion to Compel Deposition Attendance and Production of Documents by Defendant's Personal Most Knowledgeable is denied.

Defendant is ordered
to give notice of the Court's ruling.